

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MARCH 18, 2026
8:30 a.m.

4. JED HIRSCHFELD V. KELLI MCALISTER

24FL1065

This matter is before the court on two separate Requests for Order (RFO), both filed by the Petitioner.

The first RFO,¹ filed January 15, 2026, is a request to (1) modify “visitation,”² (2) require both parties to respond to any messages on the “Talking Parents” application within 48 hours regarding health, education, exchanges, or vacations, and (3) confirm that Petitioner has permission to take the parties’ children to Legoland. The filing of Petitioner’s RFO prompted the court to refer the parties to a CCRC session set for January 29, 2026. (El Dorado Super. Ct., Local Ct. R. 8.10.01.)

The second RFO, filed February 13, 2026, is a request to modify custody of the parties’ child, HH (age 6). The RFO also includes a request for Temporary Emergency Orders pending the hearing, specifically, that the Petitioner be granted sole temporary legal custody, as HH has an immediate dental issue. On February 13, 2026, the court denied the Petitioner’s request for Temporary Emergency Orders.

RFO Filed January 15, 2026

Proof of service filed January 20, 2026, shows that the RFO, CCRC referral, and Notice of Tentative Ruling were all served upon the Respondent via mail that same day.

Respondent filed no timely Responsive Declaration.

The court is in receipt of a CCRC report dated January 29, 2026. The CCRC counsellor states that, on the morning of the CCRC appointment, she was notified by a court clerk that the Respondent was reportedly ill and unable to attend that day. Due to the Respondent’s non-appearance, the CCRC counsellor was unable to make any recommendations to the court. A copy of the CCRC report was mailed to both parties on February 02, 2026, according to the Clerk’s Certificate of Mailing.

The court treats the RFO as unopposed. Having reviewed the Petitioner’s declaration in support of the RFO, the court finds that the requested changes are in the best interests of HH, and therefore, the court grants the relief requested in the RFO.

¹ The caption of the RFO has a check mark next to “Child Custody,” indicating that the RFO includes a request regarding child custody. However, the body of the RFO states the Petitioner requests no change to legal or physical custody.

² Petitioner’s specific requests regarding visitation are included in Attachment 7 to the RFO, and pertain to: (1) right of first refusal before arranging third-party child care; (2) right of first refusal where the other parent is unable to personally supervise the children for more than 24 hours; (3) ensuring the children arrive to school on time; (4) response time on the “Talking Parents” application; and (5) Facetime and phone calls between the parties and their children.

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RFO Filed February 13, 2026

On February 13, 2026, the court issued an order shortening time, requiring the Petitioner to serve the RFO and supporting documents no later than February 20, 2026, and requiring the Respondent to file and serve a Responsive Declaration no later than March 02, 2026.

Proof of service filed February 19, 2026, shows the RFO was served upon the Respondent via mail on February 18, 2026.

Respondent filed no timely Responsive Declaration.

The court finds that a change is required for the best interests of HH. Petitioner's declaration shows that HH's dental care is being neglected due to lack of cooperation between the parties. Therefore, the court grants the Petitioner sole legal custody for decisionmaking on dental care of HH. As to all other issues, the parties shall continue to share joint legal custody.

TENTATIVE RULING #4:

RFO FILED JANUARY 15, 2026: THE COURT GRANTS THE RFO. THE PETITIONER IS DIRECTED TO PREPARE AND SUBMIT FOR THE COURT'S SIGNATURE A FINDINGS AND ORDER AFTER HEARING (FOAH). THE PETITIONER MAY SEEK ASSISTANCE FROM THE COURT'S FAMILY LAW FACILITATOR.

RFO FILED FEBRUARY 13, 2026: THE COURT GRANTS THE RFO IN PART. THE COURT GRANTS THE PETITIONER SOLE LEGAL CUSTODY FOR DECISIONMAKING ON DENTAL CARE OF THE PARTIES' CHILD, HH (AGE 6). AS TO ALL OTHER ISSUES, THE PARTIES SHALL CONTINUE TO SHARE JOINT LEGAL CUSTODY. THE PETITIONER IS DIRECTED TO PREPARE AND SUBMIT FOR THE COURT'S SIGNATURE A FINDINGS AND ORDER AFTER HEARING (FOAH). THE PETITIONER MAY SEEK ASSISTANCE FROM THE COURT'S FAMILY LAW FACILITATOR.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

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5. JOHNATHAN ROBERT MILTON V. KIMBERLY LESLEY NOBELLA 25FL0722

This matter is before the court on the Request for Order (RFO) filed by the Petitioner on February 03, 2026, to modify child custody and visitation. Because the parties attended CCRC within six months before the instant RFO was filed, the court did not issue a new CCRC referral. (El Dorado Super. Ct., Local Ct. R. 8.10.01.)

Proof of service filed March 02, 2026, shows the RFO was served upon the Respondent via mail on February 05, 2026.

Also on March 02, 2026, the Petitioner filed a letter from his counsellor at Vista Rise Collective dated February 09, 2026. The court notes, however, there is no proof of service for said letter.

On March 13, 2026, the Respondent filed a Responsive Declaration, a copy of which was served upon the Petitioner via mail that same day. The proof of service indicates that the Respondent, herself, performed the mail service. Generally, service must be completed by a third party. Nonetheless, the court considers the Respondent's declaration, although exhibits referenced by the Respondent were not attached to the declaration or separately filed. The court finds that it is in the best interests of the parties' children to expand the Petitioner's visitation but not to include overnight visits, as requested by the Petitioner. The court grants visitation for the Petitioner each Wednesday from 5:00 p.m. to 8:00 p.m., as well as the first, second, and fourth Saturdays and Sundays of each month from 10:00 a.m. to 6:00 p.m.

Respondent is directed to prepare a new Restraining Order After Hearing to reflect the new visitation schedule.

TENTATIVE RULING #5: THE COURT GRANTS THE RFO IN PART. THE COURT GRANTS VISITATION FOR THE PETITIONER EACH WEDNESDAY FROM 5:00 P.M. TO 8:00 P.M., AS WELL AS THE FIRST, SECOND, AND FOURTH SATURDAYS AND SUNDAYS OF EACH MONTH FROM 10:00 A.M. TO 6:00 P.M. RESPONDENT IS DIRECTED TO PREPARE AND SUBMIT FOR THE COURT'S SIGNATURE A NEW RESTRAINING ORDER AFTER HEARING (ROAH) TO REFLECT THE NEW VISITATION SCHEDULE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.